

Bills and answers likely to be still further abolished in England.

is believed that the practice in England, by bill and answer in the old form, will be done away with to a greater extent than is yet effected. Upon the whole, it would appear, that the reform here has been carried further than in England, but not further than will there be attempted, and most probably effected. On this subject the reader is referred to an article in the *London Jurist* of the 14th September, 1850. In both countries, however, the change is much in the nature of an experiment, and requires to be worked under for some time, before a clear opinion can be formed as to its efficiency.

Again ; in England, there is an Order (31) in the following terms :

Exception in the English practice.

“ If any of the cases enumerated in Order 1 involve or are attended by such special circumstances affecting either the estate or the personal conduct of the defendant, as to require special relief, the plaintiff is at liberty to seek his relief by bill, as if these Orders had not been made.”

No such exception here.

There is no analogous Order here, and therefore, in every case coming under Order 1, the plaintiff must, on peril of being subject to costs, attempt his motion for a reference.

Points on which doubts have arisen in England.

The doubts which have arisen in practice in England have been chiefly of these classes. First ; what evidence is required on each side, on the coming of the first motion—that is, how far may the case be resisted by affidavits, and to what extent must, or may, the plaintiff rebut the affidavit of the defendant ? Secondly ; how far can the Court go in deciding the cause, under the 13th English Order, (copied in the above Order 4,) which has been spoken of as being “ so wide in its language that it in effect amounts to saying, that the Court may at the hearing *do anything*,” (see *Jurist*, November 23rd, 1850, page 451) ? And thirdly ; what cases are proper for the Court to grant leave to file a claim ? The two first mentioned questions will arise here, and require some decisions to set them at rest. As to the affidavit in answer, see

*Hubbard vs.* not, of course only—namely a claim,—that Orders have them. Some useful. At the instance, the court vs. *Davies*, in reference, it is only the affidavit made for the a claim, although *Bickford vs.* specially for a Beaven, 329. accounts was *Woodman vs.* important in the English 13th that, when the produce an affidavit similar to that vit above given 845. An Injunction to a hearing being applicable *craft*, 14 *Jurist*.

A case in June, 1850, is a mode of stating the performance. But the better here as closely

Where there is for life, and the claim, the case (see Sec. 2 of